

25STCV08325 25STCV08325

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-24

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Case Number: 25STCV08325 Hearing Date: September 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 19

Tentative

Ruling

25STCV08325

JUNI

WAHAB vs COUNTY OF LOS ANGELES, et al.

September

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER'S PETITION TO APPROVE

COMPROMISE OF DISPUTED CLAIM

RULING:

The Court continues the
Petition to October 9, 2026, at 8:30 a.m., for a Proof of Service.

I.
BACKGROUND

On March 21, 2025, JUNI
WAHAB (Plaintiff), a one-year-old minor, by and through guardian ad litem,
Janis Ochoa, filed a Complaint against COUNTY OF LOS ANGELES, DEPARTMENT OF
CHILDREN AND FAMILY SERVICES; COUNTY OF ORANGE; SOCIAL SERVICES AGENCY;
URBANSITTER, INC.; and TAMIKA MILLER (Defendants), identifying Causes of Action
for:

1.
FAILURE TO PERFORM MANDATORY DUTY (GOV.
CODE § 815.6);

2.
NEGLIGENT HIRING, SUPERVISION, OR
RETENTION (GOV. CODE §§ 815.2 AND 820);

3.
NEGLIGENCE/NEGLIGENCE PER SE (GOV. CODE §
820);

4.
FAILURE TO PERFORM MANDATORY DUTY (GOV.
CODE § 815.6);

5.
NEGLIGENT HIRING, SUPERVISION, OR
RETENTION;

6.
NEGLIGENCE/NEGLIGENCE PER SE (GOV. CODE §
820);

7.
NEGLIGENCE AS TO DEFENDANT TAMIKA MILLER;

8.

VICARIOUS LIABILITY OF URBANSITTER, INC.;

9.

RESPONDEAT SUPERIOR AS TO URBANSITTER,
INC.; and,

10.

NEGLIGENCE, NEGLIGENT HIRING, SUPERVISION,
OR RETENTION AGAINST URBANSITTER, INC.

Plaintiff alleges that DEPARTMENT
OF CHILDREN AND FAMILY SERVICES (DCFS) of the COUNTY OF LOS ANGELES, and SOCIAL
SERVICES AGENCY DIVISION of ORANGE COUNTY failed to abide by mandatory duties
of investigating and providing an emergency response, after the parents sharing
custody, engaged URBANSITTER, INC. to hire Defendant TAMIKA MILLER,
inadequately screened, to babysit, and after receiving child endangerment
reports from law enforcement, leading to Plaintiff's presence in a home
presenting a high risk of abuse and injury, involving babysitter negligence occurring
while supervising Plaintiff, who accessed boiling water, which caused injuries
and disfigurement to the back, neck, shoulders, arms, and chest.

II.

LEGAL STANDARD

Petitions for approval of
minors' compromises shall fully disclose all information that has any bearing
on the compromises' reasonableness. (Chui v. Chui (2022) 75 Cal.App.5th
873, 899 [citing Cal. Rules of Court, rule 7.950].)

Notice must be given to
all appearing defendants in the action. (Code Civ. Proc., § 1014). Notice of a
petition, including the time and place of hearing, generally, with several
specified exceptions, is required at least 15 days before the day of the
hearing. (Cal. Prob. Code §1460, subds. (a)-(b). See
also generally, *ibid.*, §§1042 [hearing shall be on notice unless
statute dispenses with notice]; and 12260-12261 [regarding proof of required
notice].) The Court can dispense with notice required to be given to a person
under Section 1460. (Cal. Prob. Code §1460, subd. (e)). Alternatively,

as to an expedited petition:

Unless a hearing is requested or ordered, an expedited petition must be determined without a hearing, not more than 35 days after filing, subject to extension for good cause. (CRC Rule 7.950.5(b), (c)). "If a judge receives an unauthorized ex parte communication bearing upon the substance of a matter, the judge shall make provision promptly to notify the parties of the substance of the communication and provide the parties with an opportunity to respond." (Code of Judicial Ethics, Canon 3B(7)(d).)

A petition for court

approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules of Court, rule 3.1384(a).) Some of the Probate Code and the Code of Civil Procedure apply to compromises as to minors' claims. (See Cal. Rules of Court, rule 7.950.) In large part, the Local Rules incorporate by reference the California Rules of Court and statutory provisions. (See Super. Ct. LA County, Local Rules, rule 4.115 et seq.)

III.

ANALYSIS

The

Petitioner and Guardian Ad Litem petitions for Court approval of a settlement in the sum of \$10,000.00, to go to Claimant, age 4.

Plaintiff

would file a Request for Dismissal as to settling Defendant URBANSITTER, INC. upon

completion

of settlement terms, and dismiss the remaining Defendants due to the lack of merit and the individual Defendant's lack of funds for satisfying any judgment.

After

treatment, including skin grafts, the Claimant has almost fully healed, but may have some residual discoloration that may heal in time.

Claimant's

net recovery of \$8,103.52 would be placed into an annuity with guaranteed

payments once Plaintiff reaches age 18.

Total

medical expenses were \$551,645.90, but Medi-Cal agreed to accept a reduced amount of \$1,896.48 as a lien out of the settlement.

There

are no attorneys' fees charged.

A

proposed form Order has been lodged for Court signature and filing.

Most

importantly, courts must decide whether to approve a compromise by determining if petitioners, such as guardians, are acting in the best interests of minors or incompetent persons. (E.g., CCP §372(a); *Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603-07.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests.... [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Sup. Ct.* (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in approving petitions for minors' compromises, and ordering distributions, and local court policies, must be applied in the best interests of minors, in a case-by-case method, tailored to the circumstances. (*Christensen v. Sup. Ct.* (1987) 193 Cal.App.3d 139, 142-44.)

Here,

the Court defers consideration of the merits pending proof of notice to appearing Defendants.

IV.

CONCLUSION

The Court continues the Petition,
for notice to Defendants.